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* **IN THE HIGH COURT OF DELHI AT NEW DELHI**

+ **W.P.(C) 2020/2025 & CM APPL. 55416/2025**

MANISH GROVER

.....Petitioner

Through: Mr.Shailendra Bhatnagar,
Mr.Animesh Gautam and Mr.Rudra
Pratap Singh, Advs.

versus

**STATE GOVT OF NCT OF DELHI THROUGH ITS CHIEF
SECRETARY**

.....Respondent

Through: Mr.Vaishali Gupta, PC (Civil)
GNCTD

Ms.Kangan Roda, Adv for R-2.

Mr.Vikas Chopra, SC for MCD with
Mr.Neeraj Kumar, Ms.Anita R.Mishra
and Ms.Khushi, Advs.

Mr.Manish Mohan, Mr.Rohit Jain and
Mr.Varenyum, Advs for R-4.

Ms.Pratima N.Lakra, CGSC,
Mr.Shailendra Kumar Mishra,
Mr.Chandan Prajapati and
Ms.Kanchan Shakya, Advs for Delhi
Police.

CORAM:

HON'BLE THE CHIEF JUSTICE

HON'BLE MR. JUSTICE TUSHAR RAO GEDELA

ORDER

09.09.2025

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1. Heard learned counsel for the parties.
2. On the oral prayer made by the learned counsel for the petitioner, let the SHO of the concerned Police Station be impleaded as party/respondent no.5 in the array of parties.



3. Issue notice to the newly impleaded respondent no.5, on whose behalf Ms.Pratima N.Lakra, Central Government Standing Counsel has put in appearance and accepts notice.
4. Learned counsel for the petitioner is directed to file the amended memo of parties within a week from today.
5. In the Status Report filed by the respondent-Archaeological Survey of India ('ASI') it has been stated that the site in question was inspected on 20.02.2024, at which time it was observed that construction activities had been halted and that no active construction work was in progress. The Report further states that as per the latest Report dated 27.03.2025, it has been noted that construction at House No.6/3, Block 40, Singh Sabha Road, Shakti Nagar, Delhi has progressed up to four floors and that plastering and tile work is presently undergoing.
6. On record is a letter dated 19.08.2025, which is a reply to the learned counsel representing the petitioner by the Superintendent Archaeologist wherein, it has been stated that a Stop Work Order dated 15.02.2024 was already issued by the respondent-ASI to the owner of the said property for carrying out illegal construction i.e., new construction within the regulated area of the Tomb of Raushanara and the Barahdari which is a monument of national importance. The letter further states that a police complaint had also been lodged in the local police station. As per the said letter, law enforcing agencies have also been informed for further necessary action and that a request has been made to the Directorate for issuing removal order under Rule 38(1) of the Ancient Monuments and Archaeological Sites and Remains Rules, 1959, ('Rules, 1959') on 07.05.2025.
7. Learned counsel representing the respondent-MCD has stated that in



terms of the Delhi Building Bye Laws – 2016, the permit to construct was granted by the Architect under the same scheme, however, the same has not been found to be in accordance with law and accordingly, proceedings have been instituted for revocation of the sanctioned building plan.

8. There also appears to be some dispute, as to whether, the construction in question falls within the prohibited area as defined in Section 2(ha) read with Section 20A of the Ancient Monuments and Archaeological Sites and Remains Act, 1958 ('Act, 1958') or in the regulated area as defined in Section 2(l) read with Section 20B of the Act, 1958.

9. In the Status Report submitted by respondent-ASI, the area has been described to be regulated area whereas; learned counsel for the petitioner has asserted that the construction lies in the prohibited area.

10. In the aforesaid facts we pass the following orders as interim measure:-

- (i) Respondent no.4/owner of the property in question is restrained from raising any construction, whatsoever of any nature henceforth.
- (ii) It shall be the responsibility of the SHO of the concerned Police Station to ensure that the order being passed today is complied with in its letter and spirit.
- (iii) Let an additional affidavit be filed by the respondent-ASI by the next date of listing, clearly stating as to whether, the construction in question lies in the prohibited area or regulated area. The said affidavit shall be filed after conducting a survey by the respondent-ASI.
- (iv) Respondent-ASI apart from filing the additional affidavit as directed above, shall also file the latest Status Report by the next



date of listing.

11. List on 12.11.2025.
12. We request the learned counsel for the parties to communicate this order to the authorities concerned forthwith without waiting for its certified copy.
13. We further direct that henceforth, any pleadings filed by the parties shall be exchanged among themselves.

DEVENDRA KUMAR UPADHYAYA, CJ

TUSHAR RAO GEDELA, J

SEPTEMBER 9, 2025/MJ